Class F1: Introduction to Law and the Indian Legal System

Phase 0: Foundations | Law Refresher Course | Revised with section references

What you will learn today: what law is, the types of law, where law comes from, how a law is made, how the courts are arranged, the everyday legal words, and how to read a bare Act and a case citation.
How to read the references: "Art." = Article of the Constitution. "S." = Section. "O.7 R.11" = Order 7 Rule 11 of the CPC. "(old ...)" = the section number in the law that was replaced, e.g. "BNS S.303 (old IPC S.378)".

Abbreviations used: CPC = Code of Civil Procedure, 1908; GCA = General Clauses Act, 1897; BNS = Bharatiya Nyaya Sanhita, 2023; BNSS = Bharatiya Nagarik Suraksha Sanhita, 2023; BSA = Bharatiya Sakshya Adhiniyam, 2023; SRA = Specific Relief Act, 1963; NI Act = Negotiable Instruments Act, 1881; CPA = Consumer Protection Act, 2019.

1. What Is Law?

In simple words, **law is a set of rules made or recognised by the State, which everyone must follow, and which the State enforces through courts and penalties.**

Where "law" is defined

Provision	What it says
Constitution, Art. 13(3)(a)	"Law" **includes** any Ordinance, order, bye-law, rule, regulation, notification, custom or usage having the force of law in India.
Constitution, Art. 13(3)(b)	"Laws in force" includes laws passed before the Constitution and not repealed (that is why the Contract Act of 1872 still applies).
Constitution, Art. 13(1) and (2)	Any law inconsistent with the **fundamental rights** is **void** to that extent.

Two classic definitions (from jurisprudence, not from any Act)

Jurist	Definition	Key idea
John Austin	"Law is the **command of the sovereign**, backed by a **sanction**."	Law = an order from the ruler + a punishment for disobeying
John Salmond	"Law is the body of principles **recognised and applied by the State in the administration of justice**."	Law = what the courts actually apply

Law, morality and custom

	Law	Morality	Custom
Made by	The State	Society and conscience	Long practice of a community
Enforced by	Courts, police, penalties	Shame, guilt	Social pressure
Example	Not paying tax is punishable	Lying to a friend is wrong	Giving gifts at weddings

Custom as law: a custom is recognised as law (Art. 13(3)(a)) only if it is **ancient, certain, reasonable and not against public policy**. These conditions are written into **S.3(a) of the Hindu Marriage Act, 1955**, which defines "custom" and "usage".

2. Types (Classification) of Law

A. Civil law vs Criminal law

Point	Civil law	Criminal law
Purpose	Settle disputes; give a **remedy**	**Punish** wrongs against society

Point	Civil law	Criminal law
How a case starts	A **plaint**: CPC **S.26** ("every suit shall be instituted by the presentation of a plaint") and **O.7**	An **FIR**: BNSS **S.173** (old CrPC S.154); or a **complaint** to a Magistrate: BNSS **S.2(1)(h)** (definition) and **S.223** (old CrPC S.200)
Who starts it	The injured person (**plaintiff** or **petitioner**)	The **State** (police and the Public Prosecutor), or a **complainant**
The other side	**Defendant** or **respondent**	**Accused**
Case name	*Ramesh v. Suresh*	*State of Andhra Pradesh v. Suresh*
Standard of proof	**Preponderance of probabilities**	**Beyond reasonable doubt**
Burden of proof	BSA **S.104** (old Evidence Act S.101): whoever asserts a fact must prove it	Same section, plus the presumption of innocence
Meaning of "proved"	BSA **S.2(1)(j)** (old Evidence Act S.3)	Same
Result	**Decree**: CPC **S.2(2)**; plus a **judgment**: CPC **S.2(9)**	Conviction and sentence (BNS **S.4** lists the kinds of punishment, old IPC S.53), or acquittal
Main laws	CPC, Contract Act, Transfer of Property Act	BNS, BNSS, BSA

Trick: "Civil = **compensation**; Criminal = **punishment**." Civil is about *my right*; criminal is about *society's peace*.

B. Substantive law vs Procedural law

Substantive law	Procedural law
Creates and defines **rights and duties**	Lays down the **method** to enforce those rights
What the law is	*How* to go to court
Contract Act (e.g. **S.2(h)** defines "contract"); BNS (e.g. **S.303** defines theft)	CPC, BNSS, Limitation Act

Trick: substantive law is the **destination**; procedural law is the **road map**.

C. Other classifications

Type	Meaning	Example and section
Public law	Between the State and citizens	Constitution; BNS; tax laws
Private law	Between private persons	Contract Act; Transfer of Property Act
Municipal (national) law	Law within one country	All Indian Acts. Parliament's power: **Art. 245–246** and the **Seventh Schedule**
International law	Between nations	Treaties. Parliament can make laws to implement them: **Art. 253**
Codified law	Written in an Act	Contract Act, 1872
Uncodified law	Developed by courts	Most of the law of torts (negligence, nuisance)
Personal law	Depends on religion	Hindu Marriage Act, 1955; Muslim Personal Law (Shariat) Application Act, 1937, **S.2**

3. Sources of Law in India

Source	Provision that gives it force
1. **Constitution** (supreme)	**Art. 13** (laws against fundamental rights are void); **Art. 245** (extent of laws made by Parliament and States)
2. **Legislation**	**Art. 246** with the **Seventh Schedule**: List I Union, List II State, List III Concurrent. If a central and a state law on a Concurrent subject conflict, the central law generally prevails: **Art. 254**
3. **Delegated legislation**	Power given by the parent Act. Examples: **CPC S.122** (High Courts may amend the Orders); **SEBI Act S.30** (SEBI makes regulations). Included in "law" by **Art. 13(3)(a)**
4. **Judicial precedent**	**Art. 141**: law declared by the Supreme Court binds all courts. **Art. 144**: all authorities must act in aid of the Supreme Court. **Art. 227**: High Court's superintendence over courts in the State
5. **Custom**	**Art. 13(3)(a)**; **Hindu Marriage Act S.3(a)**
6. **Personal law and equity**	Shariat Act **S.2**; Hindu law statutes; "justice, equity and good conscience" where no law applies

Precedent: words you must know

- **Ratio decidendi:** the *reason for the decision*. This is the binding part under **Art. 141**.
- **Obiter dicta:** "things said by the way". Only persuasive.
- **Stare decisis:** "stand by what has been decided".

Trick: the **ratio** is the **root**, the **obiter** is the **ornament**.

4. A Short History (milestones)

Year	Event
1726	Charter creating **Mayor's Courts** in Madras, Bombay and Calcutta
1774	**Supreme Court at Calcutta**, under the Regulating Act, 1773
1834	First **Law Commission** under Lord **Macaulay**
1860–1882	IPC (1860), Evidence Act (1872), Contract Act (1872), Transfer of Property Act (1882)
1861	**Indian High Courts Act**
1908	Present **CPC**
1937	**Federal Court** of India
26 Jan 1950	**Constitution** in force; **Supreme Court** established under **Art. 124**, begins 28 Jan 1950
1 Jan 2019	**High Court of Andhra Pradesh** at Amaravati
1 July 2024	BNS, BNSS, BSA replace the IPC, CrPC and Evidence Act

5. The Three Organs of the State

Organ	Role	Constitutional provisions
Legislature	Makes laws	Parliament: **Art. 79**; State Legislatures: **Art. 168**
Executive	Implements laws	President: **Art. 52–53**; Council of Ministers: **Art. 74**; Governor: **Art. 153–154**
Judiciary	Interprets laws, decides disputes	Supreme Court: **Art. 124**; High Courts: **Art. 214**; subordinate courts: **Art. 233–237**

How a central law is made

Step	Provision
1. A **Bill** is introduced in either House	**Art. 107**
A **Money Bill** (defined in **Art. 110**) can be introduced only in the Lok Sabha	**Art. 109**
2. Both Houses pass it (a deadlock can go to a **joint sitting**)	**Art. 107–108**
3. **President's assent** makes it an Act	**Art. 111**
4. Published in the **Official Gazette**	—
5. **Commencement:** on the date of assent, unless the Act says otherwise	**GCA S.5**
State law: Governor's assent	**Art. 200**
Ordinance when the legislature is not in session; lapses six weeks after reassembly unless approved	**Art. 123** (President), **Art. 213** (Governor)
Effect of **repeal** of an Act on pending rights and cases	**GCA S.6**

Example: the BNS received the President's assent in December 2023, but **S.1(2)** of the BNS said it would come into force on a date notified by the Central Government. That date was 1 July 2024.

6. The Courts and Where Cases Go

Level	Civil side	Criminal side
Top	**Supreme Court** (Art. 124; appeals Art. 132–136)	Supreme Court
State	**High Court** (Art. 214)	High Court
District	**District Judge** (Art. 233)	**Sessions Judge**
Middle	**Senior Civil Judge**	**Chief Judicial Magistrate**
Base	**Junior Civil Judge**	**Judicial Magistrate First Class**
Law that creates them	**AP Civil Courts Act, 1972**	**BNSS S.6** (classes of criminal courts; old CrPC S.6)

Concept	Provision
Civil courts can try all civil suits unless barred	**CPC S.9**
Pecuniary limits apply	**CPC S.6**
Sue in the lowest competent court	**CPC S.15**
Place of suing	**CPC S.16–20**
Writs to the Supreme Court / High Court	**Art. 32** / **Art. 226**
Consumer Commissions (District: claims up to ₹50 lakh)	**CPA S.28, S.34**
Family Courts	**Family Courts Act, 1984, S.3 and S.7**
Lok Adalats	**Legal Services Authorities Act, 1987, S.19**

7. Everyday Legal Words (Glossary with sections)

Term	Meaning	Defined in / governed by
Suit	A civil case	Not defined; instituted by plaint: **CPC S.26**
Plaint	The document that starts a suit	**CPC O.7** (contents: **O.7 R.1**)
Written statement	The defendant's reply	**CPC O.8 R.1**
Pleading	Plaint or written statement	**CPC O.6 R.1**
Cause of action	Facts giving the right to sue	Not defined; must be stated in the plaint: **CPC O.7 R.1(e)**
Prayer (relief)	What you ask the court for	**CPC O.7 R.1(g)** and **O.7 R.7**
Cause title	Heading with court and parties	**CPC O.7 R.1(a)–(d)**
Jurisdiction	Court's power to hear a case	**CPC S.9, S.15–20**; **BNSS S.197** onwards (place of inquiry and trial; old CrPC S.177)
Vakalatnama	Client's authority to the advocate	**CPC O.3 R.4**
Advocate	A person enrolled under the Advocates Act	**Advocates Act, 1961, S.2(1)(a)**
Affidavit	Sworn statement of facts	**GCA S.3(3)**; **CPC O.19**
Summons (civil)	Order to appear	**CPC S.27** and **O.5**
Summons / **Warrant** (criminal)	Order to appear / to arrest	**BNSS S.63** onwards (summons) and **S.72** onwards (warrants) (old CrPC S.61 and S.70)
Bail	Release from custody on conditions	Defined: **BNSS S.2(1)(b)**; bailable: **S.478**; non-bailable: **S.480**; anticipatory: **S.482** (old CrPC S.436, 437, 438)
Complaint	Allegation to a Magistrate	**BNSS S.2(1)(h)** (old CrPC S.2(d))
FIR	First information of a cognizable offence	**BNSS S.173** (old CrPC S.154)
Ex parte	In the absence of the other party	**CPC O.9 R.6** and **R.13**
Injunction	Order to do or not do something	Temporary: **CPC O.39**; **SRA S.37** (temporary), **S.38** (perpetual), **S.39** (mandatory)
Stay	Temporary stop	Of a later suit: **CPC S.10**; of a decree pending appeal: **CPC O.41 R.5**
Adjournment	Postponing a hearing	**CPC O.17 R.1** (maximum 3)
Judgment / **Decree** / **Order**	Reasons / final result / other decisions	**CPC S.2(9)** / **S.2(2)** / **S.2(14)**
Appeal	Challenge in a higher court	Civil: **CPC S.96** (first), **S.100** (second); criminal: **BNSS S.413** onwards (old CrPC S.372)
Person	Includes a company or association	**GCA S.3(42)**
Immovable / **movable property**	Land and things attached to it / everything else	**GCA S.3(26)** / **S.3(36)**
Bare Act	Text of the Act alone	—

8. How to Read a Bare Act

Every Act follows a standard layout:

1. **Long title and Preamble:** the purpose of the Act.
2. **Section 1:** short title, extent and commencement. Example: **CPC S.1**; **BNS S.1**.
3. **Section 2 (usually): definitions**. Always read these first. Example: **CPC S.2**; **Contract Act S.2**; **BNSS S.2**.
4. **Main sections**, grouped into Chapters or Parts.

5. **Schedules**. Example: the **CPC First Schedule** contains the 51 Orders (made amendable by High Courts under **S.122**).

Parts of a section

Part	How to spot it	Example
Sub-section / clause	S.2(1), (a), (b)	**CPC S.2(2)** defines "decree"
Proviso	**"Provided that..."**: an exception or condition	**NI Act S.138 proviso (a)–(c)**: conditions before a cheque bounce becomes an offence
Explanation	Clarifies the rule	**CPC S.11, Explanation IV**: constructive res judicata
Illustration	A worked example	**Contract Act S.10–30** and the **BSA** have many
Non obstante clause	**"Notwithstanding anything contained in..."**: overrides other provisions	**IBC S.238**: the Insolvency Code overrides any inconsistent law

"Shall" is usually **mandatory** and **"may"** usually **discretionary**. Courts sometimes read them differently depending on the context (Class F5).

9. How to Read a Case Citation

Example 1: *Kesavananda Bharati v. State of Kerala*, **(1973) 4 SCC 225**: year 1973, volume 4, *Supreme Court Cases*, page 225.

Example 2: *Maneka Gandhi v. Union of India*, **AIR 1978 SC 597**: *All India Reporter*, 1978, Supreme Court, page 597. (Interpreted **Art. 21**: any procedure depriving liberty must be fair, just and reasonable.)

Neutral citation: since 2023 the Supreme Court numbers reported judgments like **2023 INSC 123**.

Free sources: India Code (indiacode.nic.in) for bare Acts; Supreme Court and High Court websites; Indian Kanoon.

10. Latin Maxims with their Statutory Basis

Maxim	Meaning	Where it appears in law
Ignorantia juris non excusat	Ignorance of the law is no excuse	Only a **mistake of fact** excuses, not a mistake of law: **BNS S.14 and S.17** (old IPC S.76 and S.79); **Contract Act S.21**
Ubi jus ibi remedium	Where there is a right, there is a remedy	**Art. 32 and 226** (writs); **CPC S.9**
Audi alteram partem	Hear the other side	**Art. 14 and 21** (*Maneka Gandhi*); **CPC O.5** (service of summons)
Nemo judex in causa sua	No one should judge their own case	**Art. 14**; principles of natural justice
Actus non facit reum nisi mens sit rea	No guilt without a guilty mind	Words like "intentionally", "knowingly", "dishonestly" in BNS offences; "dishonestly" is defined in **BNS S.2(7)** (old IPC S.24)
Res judicata	A decided matter cannot be re-litigated	**CPC S.11**; criminal side: **Art. 20(2)** and **BNSS S.337** (old CrPC S.300)

11. One Problem, Three Branches of Law (worked example)

A customer books **Sampradaya Hall** and gives a cheque for the balance of ₹1,50,000. The cheque **bounces**.

Branch	Applicable sections	Parties	Forum
Criminal	"Cheque" defined: **NI Act S.6**. Offence: **S.138**; present the cheque within its validity (3 months), notice within **30 days** of the return memo, **15 days** to pay: **S.138 proviso (a)–(c)**. Complaint within **1 month** after that: **S.142(1)(b)**. Interim compensation up to 20%: **S.143A**. Punishment: up to **2 years**, or fine up to **twice the cheque amount**, or both	You = **complainant**; customer = **accused**	Judicial Magistrate, Nandyal
Civil	Contract: **Contract Act S.2(h)**; compensation for breach: **S.73**. Suit: **CPC S.26, O.7**; or summary suit: **CPC O.37**	You = **plaintiff**; customer = **defendant**	Civil court by value (**CPC S.6, S.15**)
Consumer	"Consumer": **CPA S.2(7)**; "deficiency": **S.2(11)**; "complaint": **S.2(6)**; complaint filed under **S.35**	Customer = **complainant**; you = **opposite party**	District Consumer Commission (**S.34**)

Lesson: one set of facts can give rise to civil, criminal and consumer cases at the same time.

Class F1 Test (20 marks)

For every answer, also give the section or Article where the concept is found.

Part A: one-line answers (1 mark each)

1. Which Article of the Constitution defines "law", and what does it include?
2. What is the standard of proof in a criminal case, and which BSA section defines "proved"?
3. Which Article makes Supreme Court decisions binding on all courts in India?
4. Give one example each of substantive and procedural law, with a section from each.
5. What is the binding part of a judgment called?
6. Which Article gives the President's assent to a Bill?
7. What does a proviso begin with? Give the example from the NI Act.
8. Under which CPC provision is a vakalatnama filed?
9. In *AIR 1978 SC 597*, what does "597" stand for?
10. Translate *Audi alteram partem*, and name one Article it is linked to.

Part B: short answers (3 marks each)

11. Give four differences between civil and criminal law, citing the provision for how each type of case starts.
12. Explain ratio decidendi and obiter dicta, and the Article that makes the ratio binding.

Part C: practical problem (4 marks)

13. At a wedding in **Samriddhi Hall**, a guest slips on a wet floor and breaks a leg. In the same week, a supplier steals ₹50,000 of cooking vessels from the hall.
    - (a) Which is mainly a civil matter and which is criminal? (2 marks)
    - (b) Name the parties in each case, with the section under which the criminal case would be registered and the offence charged. (2 marks)